

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jean Paul Lozada	Team: Squad #02	CCRB Case #: 201803868	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 05/08/2018 6:49 PM	Location of Incident: § 87(2)(b) and over the telephone	18 Mo. SOL 11/8/2019	Precinct: 105		
Date/Time CV Reported Tue, 05/08/2018 11:07 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 05/16/2018 11:07 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Dylan Simpson	20631	959238	105 PCT
2. POM Michael Russo	16409	961216	105 PCT
3. POM Brandon McNally	28587	957841	105 PCT
4. POM Daniel Loonie	07013	953006	105 PCT
5. POM Joseph Arena	09544	951508	105 PCT
6. POF Nicole Essig	16020	957568	105 PCT
7. An officer			105 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Yoosup Shim	00557	948275	105 PCT
2. POM Matthew Alfino	20664	958232	105 PCT
3. POM Gurpreet Singh	25685	962806	105 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Nicole Essig	Abuse: At 256-15 Hillside Avenue in Queens, Police Officer Nicole Essig damaged § 87(2)(b)'s property.	A . Substantiated
B . POM Joseph Arena	Abuse: At 256-15 Hillside Avenue in Queens, Police Officer Joseph Arena damaged § 87(2)(b)'s property.	B . Substantiated
C . An officer	Abuse: Over the telephone, an officer refused to provide his name to § 87(2)(b)	C . Officer(s) Unidentified
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Officer(s)	Allegation	Investigator Recommendation
§ 87(4-b) § 87(2)(g)		

Case Summary

On May 8, 2018, § 87(2)(b) filed this complaint with the Internal Affairs Bureau via telephone, generating IAB log number 2018-18705. IAB forwarded this case to the CCRB, where it was received on May 16, 2018.

On May 8, 2018, at approximately 6:49 p.m., § 87(2)(b)'s former tenant, § 87(2)(b) called 911 to gain access to § 87(2)(b)'s commercial property at § 87(2)(b) in Queens that § 87(2)(b) formerly held a lease to. § 87(2)(b) and his business partners had surrendered their lease to the property, and § 87(2)(b) subsequently changed the store's locks. Police Officer Nicole Essig and Police Officer Joseph Arena of the 105th Precinct responded to the scene and allegedly told § 87(2)(b) to call a locksmith to break the store's locks. An unidentified locksmith then forced open the locks (**Allegations A and B: Abuse of Authority – Property Damaged, substantiated**). § 87(2)(b) who was not at the scene, received a phone call from an unidentified male officer, who said § 87(2)(b) had lawful access to the store. § 87(2)(b) asked the officer for his name, and the officer allegedly refused to provide it to him (**Allegation C: Abuse of Authority – Refusal to Provide Name, officer(s) unidentified**). § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

No video footage of this incident was found.

Findings and Recommendations

Allegation (A) Abuse of Authority: At § 87(2)(b) in Queens, Police Officer Nicole Essig damaged § 87(2)(b)'s property.

Allegation (B) Abuse of Authority: At § 87(2)(b) in Queens, Police Officer Joseph Arena damaged § 87(2)(b)'s property.

On May 23, 2018, § 87(2)(b) provided a telephone statement to the CCRB (Board Review 23), and on June 1, 2018, he was interviewed at § 87(2)(b) in Queens. Witness § 87(2)(b) provided a statement at § 87(2)(b) Avenue in Queens on June 1, 2018 (Board Review 04). § 87(2)(b) provided a telephone statement on June 28, 2018 (Board Review 02), and his business partner, § 87(2)(b) provided a telephone statement on July 11, 2018 (Board Review 03). Police Officer Joseph Arena of the 105th Precinct was interviewed on July 17, 2018. Police Officer Daniel Loonie of the 105th Precinct was interviewed on July 26, 2018. Police Officer Dylan Simpson and Police Officer Gurpreet Singh of the 105th Precinct were interviewed on August 2, 2018. Sergeant Yoosup Shim of the 105th Precinct was interviewed on August 3, 2018. Police Officer Nicole Essig of the 105th Precinct was interviewed on August 9, 2018. Police Officer Brandon McNally of the 105th Precinct was interviewed on August 20, 2018. Police Officer Michael Russo of the 105th Precinct was interviewed on October 3, 2018.

§ 87(2)(b) stated that he was at home when he received a call from § 87(2)(b) his commercial tenant at § 87(2)(b). § 87(2)(b) informed § 87(2)(b)

that § 87(2)(b) and § 87(2)(b) were in front of their former commercial property adjacent to the temple, § 87(2)(b), with a locksmith. § 87(2)(b) had previously signed a Surrender of Lease agreement which stated that he had to vacate the store by May 5, 2018 (Board Review 01). § 87(2)(b) then received a call from § 87(2)(b) who complained about the locks being changed and said he needed a few more days in the store, and that he had called 911 and a locksmith. The following day, § 87(2)(b) went to the store and discovered that the padlocks on the front and the rear of the store had been broken and replaced with new locks.

§ 87(2)(b) stated that numerous police officers responded to the parking lot in the rear of the store, and four to five uniformed officers told him to call a locksmith to break the locks. He did not recall what these officers looked like, nor did he recall the locksmith's identity or contact information. § 87(2)(b) acknowledged signing the Surrender of Lease agreement, but he noted that § 87(2)(b) had not yet returned his security deposit.

§ 87(2)(b) stated that he and the officers were present at the store when the locksmith clipped the locks, but he was uncooperative in providing additional details.

§ 87(2)(b) stated that he saw § 87(2)(b) and § 87(2)(b) with a locksmith outside the store, but he did not see any police officers.

§ 87(2)(b) and § 87(2)(b) each made numerous 911 calls to report what was happening at § 87(2)(b) (Board Review 05 for EVENTS, Board Review 06 for transcription of 911 recordings). In EVENT § 87(2)(b) § 87(2)(b) called 911 five times to report that § 87(2)(b) had changed the locks and that he was attempting to gain access to the store. According to the EVENT, the officers who responded to this job were assigned to Response Auto 6, and according to the 105th Precinct Roll Call (Board Review 07), the officers assigned to Response Auto 6 were Police Officer Essig and Police Officer Arena. In his sixth 911 call (EVENT § 87(2)(b) § 87(2)(b) stated that officers were previously at the store, were on their way back to the store, and had told him to call a locksmith. According to the EVENT, Police Officer Essig and Police Officer Arena (and no additional units) also responded to this job. The next 911 call (EVENT § 87(2)(b) was from § 87(2)(b) who reported that § 87(2)(b) was attempting to break into his store after having been evicted.

Sergeant Shim stated that he responded to the store after § 87(2)(b) reported that the store had been burglarized. When he arrived at the scene, § 87(2)(b) and § 87(2)(b) told him that officers that they had previously spoken to told them that they had a right to cut the locks, at which point they hired a locksmith. The locksmith was no longer at the scene. Sergeant Shim stated that when he returned to the 105th Precinct stationhouse, Police Officer Essig told him that she and Police Officer Arena were the officers who gave § 87(2)(b) and § 87(2)(b) their permission to have the locks cut.

Police Officer Essig stated that she and Police Officer Arena responded to a job for a tenant being locked out of his commercial property. She stated that Police Officer Arena spoke to § 87(2)(b) who said § 87(2)(b) had changed the locks and that he did not have any documentation staking his claim to the store. Police Officer Arena then referred § 87(2)(b) to landlord-tenant court, and then they left the scene. Approximately 45 minutes later, Police Officer Essig and Police Officer Arena received a job for a landlord-tenant dispute at the same location. They arrived at the scene and spoke to § 87(2)(b) who said § 87(2)(b) was not answering his phone and that he needed to

allegedly never provided his name to § 87(2)(b) later spoke to Sergeant Shim, who identified himself by name, over the phone.

In the recording for EVENT § 87(2)(b) (Board Review 06), § 87(2)(b) tells the 911 operator that he had previously spoken by phone with an officer who was at the scene who would not tell him his name. According to the EVENT (Board Review 05), this was § 87(2)(b)'s third 911 call, which he made at 7:54 p.m.

At the time of his interview, § 87(2)(b) had erased his call history from his phone. His telephone records were subpoenaed from Verizon Wireless (Board Review 09). An analysis of these records in conjunction with the EVENTS and Lexis Nexis and CLEAR search results (Board Review 10) revealed two telephone numbers that may have been associated with the subject officer. A call made to the first number on September 27, 2018, and the respondent, § 87(2)(b) stated that no one affiliated with the NYPD used this number. Searches of Lexis Nexis and CLEAR revealed no personal identifying information associated with the second number. Calls were made to this number on July 11, 2018 and January 17, 2019. Both calls resulted in a busy tone and failed to connect. A request to the NYPD Information Technology Bureau for the identity of the officer associated with this telephone number yielded negative results (Board Review 11).

According to the EVENTS, the units which had responded to the scene prior to 7:54 p.m. were Response Auto 6 (Police Officer Essig and Police Officer Arena) and Patrol Sector D1 (Police Officer Simpson and Police Officer Russo). The Roll Call (Board Review 07) lists Police Officer Simpson and Police Officer Matthew Alfino as being assigned to Sector D, but Police Officer Alfino's memo book (Board Review 12) states that his assignment was changed at an unspecified time between 5:55 p.m. and 7:20 p.m., and he did not respond to the incident location until 8:12 p.m. Police Officer Russo's memo book (Board Review 13) states that his post was changed at 5:20 p.m., at which point he began working with Police Officer Simpson.

Police Officer Essig and Police Officer Arena denied speaking to § 87(2)(b) on the phone at any point and witnessing any other officer do so.

Police Officer Simpson stated that when he arrived at the incident location, he drove into a parking lot behind the store, where a "couple of" police vehicle were parked, but he did not recall which officers were present. The Response Auto unit that had previously responded to the location entered the parking lot immediately behind Police Officer Simpson, and one of these officers told him that they would handle the job and directed Police Officer Simpson to resume patrol. Police Officer Simpson and Police Officer Russo then left the scene less than one minute after arriving. Police Officer Simpson denied speaking to § 87(2)(b) at any point and was unaware of which officer did so.

Police Officer Russo stated that he had no memory of this incident and that he did not recall himself or any other officer speaking to § 87(2)(b) on the phone. He denied refusing to provide this name to § 87(2)(b) over the phone.

Police Officer Loonie, Police Officer McNally, and Sergeant Shim each stated that they spoke to § 87(2)(b) on the phone, but their memo books (Board Review 14, 15, 16) indicate that they did not respond to the scene until 8:12 p.m., at which point § 87(2)(b) had already told the 911 operator that he spoke to the officer who refused to provide his name. Police Officer Loonie and

Police Officer McNally denied refusing to provide their names to § 87(2)(b) and Sergeant Shim did not recall being aware of any officer doing so.

Police Officer Singh was at the 105th Precinct stationhouse at the time of the incident. He spoke to § 87(2)(b) at the stationhouse prior to the locks being cut. Police Officer Singh denied speaking to § 87(2)(b) on the phone at any point.

§ 87(2)(g) It is therefore recommended that **Allegation C** be closed as **officer(s) unidentified**.

§ 87(4-b), § 87(2)(g)

.Civilian and Officer CCRB Histories

- This is the first CCRB complaint in which § 87(2)(b) has been a party (Board Review 20).
- Police Officer Nicole Essig has been a member-of-service for three years and this is the first CCRB complaint to which she has been a subject.
- Police Officer Joseph Arena has been a member-of-service for six years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of September 11, 2018, the New York City Office of the Comptroller had no record of a Notice of Claim being filed in regards to this complaint (Board Review 21).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 02

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date